

Sudha Tiwari v. State of U.P. — Clause 6.5 alternative remedy; writ dismissed

High Court of Judicature at Allahabad · Division Bench · 25 November 2021 · Writ-C No. 28100 of 2021 (All.) · WRIT - C No. 28100 of 2021 · **Writ dismissed on alternative remedy; petitioner to invoke Clause 6.5 before the Executive Engineer.**

HEADNOTE

A writ seeking mandamus to the Executive Engineer of PuVVNL Fatehpur to decide a representation dated 9.9.2021 was dismissed. The Division Bench held that the appropriate remedy for such an innocuous prayer is to approach the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005, and declined to issue a writ on the ground of alternative remedy.

FACTUAL SUMMARY

Sudha Tiwari filed a civil writ in the Allahabad High Court seeking a mandamus commanding the Executive Engineer, Vidyut Vitran Khand, Purvanchal Vidyut Vitran Nigam Ltd., Fatehpur, to decide her representation dated 9 September 2021 within one month. The representation was annexed to the petition. The State and the distribution licensee were represented. The Division Bench recorded only that the prayer was innocuous and did not set out the contents of the representation or the nature of the underlying electricity dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-alternate-remedy-to-writ

HOLDING

Where the petitioner seeks only a direction that the Executive Engineer decide a representation, the appropriate remedy is to invoke Clause 6.5 of the Electricity Supply Code, 2005 before that officer; a writ of mandamus will not issue and the petition is dismissed on the ground of alternative remedy. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ seeking a mandamus to decide a representation was dismissed because Clause 6.5 is the proper forum before the Executive Engineer. ¶ 1

6.5-representation-as-appropriate-remedy The Court treated the innocuous prayer to decide the 9.9.2021 representation as a matter for Clause 6.5 rather than for writ relief. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE REPRESENTATION DATED 9.9.2021 AND ANY UNDERLYING BILLING OR SUPPLY DISPUTE

The Court identified Clause 6.5 as the forum and did not examine the representation or direct that it be decided. ¶ 1